

# STATE OF NEW YORK

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6916--A

2025-2026 Regular Sessions

## IN ASSEMBLY

March 18, 2025

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Introduced by M. of A. HAWLEY -- read once and referred to the Committee on Cities -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT authorizing the city of Batavia to alienate certain parklands for use as a municipal parking lot and to preserve the historic Brisbane mansion

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subject to the provisions of this act, the city of Batavia,  
2 located in the county of Genesee, acting by and through its governing  
3 body and upon such terms and conditions as determined by such body, is  
4 hereby authorized to discontinue as parklands and to sell and convey at  
5 fair market value the lands more particularly described in section three  
6 of this act, for the purposes of providing free municipal parking and  
7 preserving the historic Brisbane mansion for residential or hotel uses.

8 § 2. The authorization contained in section one of this act shall only  
9 be effective on the condition that the city of Batavia dedicate an  
10 amount equal to or greater than the fair market value of the parklands  
11 being alienated pursuant to section one of this act towards the acquisition  
12 of new parklands and/or capital improvements to existing park and  
13 recreational facilities.

14 § 3. The parklands authorized by section one of this act to be discontinued  
15 as parklands are described as follows:

16 ALL that tract or parcel of land, situate in the City of Batavia,  
17 County of Genesee and State of New York, being part of Original Village  
18 Lots 15 and 16 and part of the alley adjoining Lot 16 on the east, and  
19 more particularly described as follows:

20 Beginning at a point on the northerly street line of East Main Street  
21 at the southwest corner of land owned by the United States Government,  
22 known as the Post Office property, said point being N 79°47'00" W,

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[-] is old law to be omitted.

LBD10868-02-5

1 149.68' from the intersection of the northerly street line of East Main  
2 Street and the westerly street line of Jefferson Avenue;

3 Thence N 79°47'00" W, along the northerly street line of East Main  
4 Street, a distance of 50.39' to a point;

5 Thence N 58°32'00" W, along the northerly street line of West Main  
6 Street, a distance of 147.05' to a point;

7 Thence N 30°40'00" E, along the easterly line of lands of the County  
8 of Genesee, a distance of 133.04' to a point;

9 Thence S 59°20'00" E, continuing along the easterly line of lands of  
10 the County of Genesee, a distance of 25.00' to a point;

11 Thence N 30°40'00" E, continuing along the easterly line of lands of  
12 the County of Genesee, a distance of 120.00' to a point;

13 Thence N 59°20'00" W, continuing along the easterly line of lands of  
14 the County of Genesee, a distance of 31.00' to a point;

15 Thence N 30°40'00" E, continuing along the easterly line of lands of  
16 the County of Genesee and an extension thereof, a distance of 55.00' to  
17 a point;

18 Thence S 59°04'00" E a distance of 341.61' to a point on the westerly  
19 street line of Jefferson Avenue;

20 Thence S 30°56'00" W, along the westerly street line of Jefferson  
21 Avenue, a distance of 83.60' to a point, said point being the northeast  
22 corner of the Post Office property, said point also being N 30°56'00" E,  
23 155.00' from the intersection of the northerly street line of East Main  
24 Street and the westerly street line of Jefferson Avenue;

25 Thence N 59°04'00" W, along the northerly line of the Post Office  
26 property, a distance of 140.00' to a point, said point being the north-  
27 west corner of the Post Office property;

28 Thence S 30°56'00" W, along the westerly line of the Post Office prop-  
29 erty, a distance of 207.95' to the point of beginning, containing 1.580  
30 +/- acres.

31 § 4. In the event that the city of Batavia received any funding  
32 support or assistance from the federal government for the purchase,  
33 maintenance or improvement of the parklands set forth in section three  
34 of this act, the discontinuance and alienation of such parkland author-  
35 ized by the provisions of this act shall not occur until the city of  
36 Batavia has complied with any federal requirements pertaining to the  
37 alienation or conversion of parklands, including satisfying the secre-  
38 tary of the interior that the alienation or conversion complies with all  
39 conditions which the secretary of the interior deems necessary to assure  
40 the substitution of other lands shall be equivalent in fair market value  
41 and usefulness to the lands being alienated or converted.

42 § 5. This act shall take effect immediately.